

25STCV064574 25STCV064574

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-21

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Case Number: 25STCV064574 Hearing Date: July 21, 2026 Dept: 512

HEARING DATE: Tues., July 21, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Westfield

Topanga Owner, LLC v. Torpedo COMP.

FILED: 03-07-25

World Inc., et al.

CASE NUMBER: 25STCV06574

XCOMPL. FILED: 04-21-25

NOTICE: OK

PROCEEDINGS: MOTION TO DISMISS

MOVING PARTY: Plaintiff

and Cross-Defendant Westfield Topanga Owner, LLC

RESP. PARTY: None

MOTION TO DISMISS

(CCP § 581(f)(2))

TENTATIVE RULING:

Plaintiff and

Cross-Defendant Westfield Topanga Owner, LLC's unopposed Motion to Dismiss the Second and Third Causes

of Action of the Cross-Complaint is
GRANTED.

The
second and third causes of action in Defendant Torpedo World Inc.'s Cross-Complaint
are DISMISSED WITH PREJUDICE.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of
Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address
(CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None
filed as of July 16, 2026 ☐ Late ☒
None

REPLY: None
filed as of July 16, 2026 ☐
Late ☒ None

ANALYSIS:

I.
Background

On March 7, 2025, Plaintiff Westfield
Topanga Owner, LLC ("Plaintiff") filed the instant action against Defendants
Torpedo World Inc. ("Torpedo World") and John Dolmayan ("Dolmayan")
("Defendants") and Does 1-20, alleging causes of action for Breach of Contract
and Breach of Guaranty. (Compl., p. 1.)

On April 21, 2025, Torpedo World filed a Cross-Complaint against Plaintiff, alleging causes of action for Breach of Contract, Negligence, and Premises Liability.

On April 25, 2025, Torpedo World filed an Answer to the Complaint.

On July 10, 2025, the Court overruled Plaintiff's demurrer to the Cross-Complaint as to the first cause of action and sustained Plaintiff's demurrer to the Cross-Complaint with 30 days leave to amend as to the second and third causes of action. (7/10/25 Order.) The Court ordered Torpedo World to file and serve a First Amended Cross-Complaint ("FACC") within 30 days of notice of ruling. (7/10/25 Order.)

On July 11, 2025, Plaintiff filed and serve Notice of Ruling of the Court's 7/10/25 Order.

On September 5, 2025, Plaintiff filed an Answer to the Cross-Complaint.

On May 19, 2026, Plaintiff filed the instant Motion to Dismiss the Second and Third Causes of Action of the Cross-Complaint (the "Motion").

To date, no Opposition has been filed.

II.

Legal

Standard & Discussion

Code of Civil Procedure, section 581, subdivision (f)(2) provides that upon motion of any party, the Court may dismiss the Complaint when a defendant's demurrer is sustained with leave to amend and the plaintiff fails to amend the pleading within the time allowed by the court. (Code Civ. Proc., § 581, subd. (f)(2).)

Here, more than 30 days have passed since notice of the ruling sustaining the Demurrer to the second and third causes of action with leave to amend, and Torpedo World has not filed a FACC following the Court's ruling on July 10, 2025. As Torpedo World has neither

filed an Amended Cross-Complaint nor an Opposition to the instant Motion, Plaintiff's request to dismiss the second and third causes of action from the Cross-Complaint is granted.

Accordingly, Plaintiff's Motion is
GRANTED.

III.

Conclusion
& Order

For
the foregoing reasons, Plaintiff
and Cross-Defendant Westfield Topanga Owner, LLC's unopposed Motion to Dismiss the Second and Third Causes
of Action of the Cross-Complaint is
GRANTED.

The
second and third causes of action in Defendant Torpedo World Inc.'s
Cross-Complaint are DISMISSED WITH PREJUDICE.

Moving party is ordered to
give notice.